

		advertisements and other marketing materials regarding the Vehicle which did not disclose the defects. Plaintiff has not alleged any fraudulent statements made or actions specifically on the part of Defendant or individuals working on behalf of Defendant to otherwise induce Plaintiff into purchasing the Vehicle. Plaintiff has not pled sufficient facts to support this cause of action. The Motion is GRANTED. Plaintiff is given leave to file an amended complaint within 15 days of written notice of the ruling. <i>Defendant to give notice.</i>
6.	Renevier v. Hyundai Motor America 25-1468057	Defendant Hyundai Motor America's ("Defendant") demurrer to plaintiff Angelina Renevier's ("Plaintiff") Complaint is SUSTAINED. Defendant demurs to the fifth cause of action for Fraudulent Inducement – Concealment on the basis it fails to state sufficient facts to constitute a cause of action against Defendant. (<i>Civ. Proc. Code § 430.10(e)</i>.) "The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact." (<i>Rattagan v. Uber Techs., Inc.</i> (2024) 17 Cal. 5th 1, 40 ("Rattagan").) "A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (<i>i.e.</i>, exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (<i>i.e.</i>, partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (<i>i.e.</i>, active concealment)." (<i>Id.</i>, at 40.) "Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as "between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.] All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances." [Citation.] "Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large." " (<i>Id.</i>, 40-41.)

California also requires that fraud must be alleged with specificity. (*Rattagan, supra*, 17 Cal.5th at 43.) The requirement provides an important safeguard against the risk of tort recovery for fraud in every case involving conduct occurring during a contractual relationship. (*Id.*) "When affirmative misrepresentation fraud is alleged, "This particularity requirement necessitates pleading facts which 'show how, when, where, to whom, and by what means the representations were tendered.' " (*Id.*)

California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim. (*Rattagan, supra*, 17 Cal.5th at 43.) "The court must determine whether the plaintiff has alleged a sufficient factual basis for establishing a duty of disclosure on the part of the defendant independent of the parties' contract. If the duty allegedly arose by virtue of the parties' relationship and defendant's exclusive knowledge or access to certain facts, as *Rattagan* has alleged here, the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission. "[M]ere conclusionary allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff[] ... are insufficient for the foregoing purposes." ' " (*Id.*, at 43-44.)

Plaintiff alleged the Vehicle experienced engine defects, transmission defects, electrical defects, and others. (Complaint ¶ 15.) The defects substantially impaired the use, value, or safety of the Vehicle. (Complaint ¶ 16.) Plaintiff alleged Defendant was aware of issues with the subject engine through internal data, testing data, consumer complaints, repair orders, testing, and other Defendant exclusive sources, and its related components and concealed them from Plaintiff. (Complaint ¶¶ 49, 53.) The defects can suddenly and unexpectedly cause the driver to be unable to control the speed and acceleration/deceleration of the vehicle. (Complaint ¶ 48.) Prior to purchasing the Vehicle, Plaintiff interacted with sales representatives and considered Defendant's advertisements and other marketing materials regarding the Vehicle. (Complaint ¶ 50.) Had Plaintiff been aware of the defects he would not have purchased the Vehicle. (Complaint ¶¶ 50, 55.)

Plaintiff did not state where she purchased the Vehicle from, whom she spoke with, or their authority to speak on behalf of Defendant prior to the purchase of the Vehicle. As such, Plaintiff has not adequately alleged a buyer-seller relationship which might otherwise require a duty to disclose. Plaintiff also only vaguely stated she relied upon advertisements and other marketing materials regarding the Vehicle which did not disclose the defects. Plaintiff has not alleged any fraudulent statements made or actions specifically on the part of

		Defendant or individuals working on behalf of Defendant to otherwise induce Plaintiff into purchasing the Vehicle. Plaintiff has not pled sufficient facts to support this cause of action. The demurrer is SUSTAINED with leave to file an amended complaint within 15 days of written notice of the ruling. <i>Defendant to give notice.</i>
7.	Jaffe v. Venous Technologies Inc. 24-1415883	Before the Court is a demurrer filed by defendants Venous Technologies, Inc. and Natalie Youshaei (Defendants) to the First Amended Complaint (FAC) of plaintiff Allen V. Jaffe (Plaintiff). For the reasons set forth below, the demurrer is OVERRULED on the 1st and 2nd causes of action and SUSTAINED without leave to amend on the 3rd cause of action. A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (<i>Code of Civ. Proc. § 430.10, subd. (e).</i>) A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (<i>Code of Civ. Proc. § 430.10, subd. (f).</i>) <u>Fraud claims</u> (1st and 2nd causes of action): The Court finds the FAC alleges sufficient facts to support each element of the fraud and/or promissory fraud claims with the requisite specificity. (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638 [elements of fraud]; <i>Rossberg v. Bank of America, N.A.</i> (2013) 219 Cal.App.4th 1481, 1498 [elements of promissory fraud]; FAC ¶¶ 5, 8-23; see also ¶¶ 24-40.) The parol evidence rule does not bar evidence of fraudulent promises, even where those promises are at variance with the terms of the written agreement. (<i>Riverisland Cold Storage, Inc. v. Fresno-Madera Production Credit Ass'n.</i> (2013) 55 Cal.4th 1169, 1182-1183; see also <i>Code of Civ. Proc. § 1856, subd. (g).</i>) The economic loss rule does not bar fraud and intentional misrepresentation claims where, as here, they are independent of breach of contract. (<i>Robinson Helicopter Co. Inc. v. Dana Corp.</i> (2004) 34 Cal.4th 979, 991.) The demurrer is therefore OVERRULED as to the fraud claims. <u>Breach of contract</u> (3rd cause of action): Plaintiff does not oppose the demurrer as to this claim. The demurrer is thus SUSTAINED without leave to amend as to this claim. <i>Counsel for Defendants shall give notice of this ruling.</i>
8.	Fernandez v. Pacific Life Insurance Company 25-1520544	(Moot)
9.	SCSA Group, Inc. v. Department of Cannabis Control, a California State Agency 24-1433413	Before the court are two demurrers and one motion to strike filed by two defendants. In the first demurrer, the Department of Cannabis Control ("DCC") challenges the Second Amended Complaint ("FAC") filed by SCSA Group, Inc., 1 Vertical, Inc. dba 420 Central, Vertical Four, Inc. dba 420 Central - Newport Mesa and Ngu Holdings, Inc. (collectively,